

Section 8: Special Conditions of Contract

The following Special Conditions of Contract (SCC) shall supplement the General Conditions of Contract (GCC). Whenever there is a conflict, the provisions herein shall prevail over those in the GCC.

GCC 1.1(j)	The Purchaser's country is: People's Republic of Bangladesh
GCC 1.1(k)	The Purchaser is: Bangladesh Rural Electrification Board.
GCC 1.1 (q)	The Site is: The quantities and items to be delivered to BREB Central Warehouse as specified in the List of Goods and Delivery Schedule in Section-6: Schedule of Supply
GCC 4.2 (b)	The version of Incoterms shall be: 2010
GCC 5.1	The language shall be: English The language for translation of supporting documents and printed literature is: English
GCC 8.1	For <u>notices</u> , the Purchaser's address shall be: Attention: Project Coordinator, Modernization and Capacity Enhancement of BREB Network (Khulna Division) Project Street address: Nikunja-2, Khilkhet. Floor/ Room number: 3rd Floor, Head Office Building, Bangladesh Rural Electrification Board (BREB) City: Dhaka ZIP code: <u>1229</u> Country: Bangladesh Telephone: +88-02-8900308 Fax: N/A E-mail: pdmcep.kd.reb@gmail.com
GCC 9.1	The governing law shall be: The People's Republic of Bangladesh.
GCC 10.2	The formal mechanism for the resolution of disputes shall be as follows: <u>For a contract with a Foreign Supplier:</u> In the case of a dispute between the Purchaser and the Supplier, the dispute shall be settled by international arbitration conducted in accordance with the Arbitration Rules of the Singapore International Arbitration Centre. The arbitration procedure shall be administered by the Singapore International Arbitration Centre. Place of arbitration: Singapore International Arbitration Centre, Singapore.

	<u>For a contract with a Local Supplier:</u> In the case of a dispute between the purchaser and a supplier who is a national of the purchaser's country, the dispute shall be referred to adjudication or arbitration in accordance with the laws of Purchaser's country. Place of arbitration: Central Procurement Technical Unit (CPTU), Bangladesh.
GCC 11.1	The Scope of Supply shall be defined in: Section-6 (Schedule of Supply).
GCC 12.1	Details of shipping and documents to be furnished by the Supplier shall be: <u>For Goods supplied from abroad as per Incoterms CIP:</u> Upon shipment, the Supplier shall notify the Purchaser and the Insurance Company by telex or fax the full details of the shipment, including Contract number, description of Goods, quantity, the vessel, the bill of lading number and date, port of loading, date of shipment, port of discharge, etc. The Supplier shall send the following documents to the Purchaser, with a copy to the Insurance Company: (a) 02 nos. original and 06 nos. copies of the Supplier's invoice showing the description of the Goods, quantity, unit price, and total amount; (b) 02 nos. original and 06 nos. copies of the negotiable, clean, on-board bill of lading marked "freight prepaid" and 06 nos. copies of nonnegotiable bill of lading; (c) 02 nos. original and 06 nos. copies of the packing list identifying contents of each package; (d) 02 nos. original and 06 nos. copies of insurance certificate; (e) 02 nos. original and 06 nos. copies of Manufacturer's or Supplier's warranty certificate; (f) 02 nos. original and 06 nos. copies of inspection certificate, issued by the nominated inspection agency, and the Supplier's factory inspection report; and (g) 02 nos. original and 06 nos. copies of certificate of origin. The Purchaser shall receive the above documents at least one (1) week before arrival of the Goods at the port or place of arrival and, if not received, the Supplier will be responsible for any consequent expenses. <u>For Goods from within the Purchaser's country as per Incoterms EXW:</u> Upon delivery of the Goods to the transporter, the Supplier shall notify the Purchaser and send the following documents to the Purchaser, with a copy to the Insurance Company: (a) 02 nos. original and 06 nos. copies of copies the Supplier's invoice showing the description of the Goods, quantity, unit price, and total amount; (b) 02 nos. original and 06 nos. copies of delivery note, railway receipt, or truck receipt; (c) 02 nos. original and 06 nos. copies of Manufacturer's or Supplier's warranty certificate;

	(d) 02 nos. original and 06 nos. copies of inspection certificate issued by the nominated inspection agency, and the Supplier's factory inspection report; and (e) 02 nos. original and 06 nos. copies of certificate of origin. The Purchaser shall receive the above documents before the arrival of the Goods and, if not received, the Supplier will be responsible for any consequent expenses.] Notes: Original shipping documents shall be prepared in accordance with the L/C opened by BREB and in all cases it must be clearly mentioned that BREB is the importer / consignee. The No. of the L/C which will be opened in favor of the supplier by BREB must be mentioned in the original Bill of Lading and Commercial Invoice.
GCC 15.2	The price adjustment shall be: Not Applicable

GCC 16.1

Payment of the Contract Price shall be made in the following manner:

For Goods supplied from outside the Purchaser's country:

(a) Advance Payment: 10% of the Contract Price within 28 days of signing of the Contract.

Payment shall be made provided the Supplier presents a request for payment accompanied by an Advance Payment Security in the form of a bank guarantee for an amount equal to the amount of the payment, and that shall be valid until the Goods are delivered. If the bank guarantee issuing bank located outside the Purchaser's country, it shall have a correspondent scheduled commercial bank located in the Purchaser's Country to make it enforceable.

The security shall be in the form as specified in Section 9 (Contract Forms).

(b) On Delivery and Acceptance: The Purchaser shall pay the Supplier 80% of the Contract Price of the Goods after satisfactory post landing inspection & test certificate through irrevocable letter of credit opened in favor of the Supplier under the ADB commitment procedure in a bank in its country upon submission of documents as specified in SCC Clause 12.1 .

Customs duties and Value Added Taxes (CD & VAT with related all taxes) of the imported materials under the Contract (incurred at the port of entry) shall be paid by the Purchaser. However, customs formalities including appointment of, and payment to, clearing and forwarding (C&F) agent shall be done by the Supplier. Port dues and all other charges shall be borne by the Supplier.

(c) Balance 10%: 10% of the Contract Price of Goods received shall be paid within 28 days of receipt of the Goods upon submission of a claim supported by the acceptance certificate issued by the Purchaser.

Note: Payment will be made against each consignment (i.e. phase-1, phase-2) of goods as specified in the delivery schedule. A separate claim from Supplier to be submitted.

For Goods supplied from within the Purchaser's country:

(a) Advance Payment: 10% of the Contract Price within 28 days of signing of the Contract.

Payment shall be made provided the Supplier presents a request for payment accompanied by an Advance Payment Security in the form of a bank guarantee from scheduled commercial bank for an amount equal to the amount of the payment, and that shall be valid until the Goods are delivered.

The security shall be in the form as specified in Section 9 (Contract Forms).

	(b) On Delivery and Acceptance: The Purchaser shall pay the Supplier 80% of the Contract Price of the Goods delivered upon submission of documents to Director, CS&M as specified in in SCC Clause 12.1 within Twenty Eight (28) days of submission of a claim supported by the acceptance certificate issued by the Director CS&M. (c) Balance 10%: 10% of the Contract Price of Goods received shall be paid within 28 days of receipt of the Goods upon submission of a claim supported by the acceptance certificate issued by the Purchaser. Note: Payment will be made against each consignment (i.e. phase-1, phase-2) of goods as specified in the delivery schedule. A separate claim from Supplier to be submitted. <u>Other terms of payment shall be the followings:</u> a) In case of short supply of materials or for any rejected materials against the Contract, the value of short supply and/or rejected materials and amount of CD & VAT of short supply and/or rejected materials with related all taxes paid by Purchaser will be retained from the Supplier and 10% amount of undelivered goods will be deducted from the supplier's bill as penalty. b) Charges for the establishment or amendment to Letter of Credit shall be borne by the Purchaser; However, if Amendment is made at the specific request of the Supplier, charges for such amendment to Letter of Credit shall be borne by the Supplier.
GCC 16.4	The currencies for payments shall be made by the Currency or currencies offered in supplier's proposal.
GCC 18.1	The Supplier shall provide a Performance Security of 10 (ten) percent of the Contract Price. The Performance Security shall be denominated in the following amounts and currencies: in the currency of contract.
GCC 18.3	The Performance Security shall be in the form of a Bank Guarantee by a reputable scheduled commercial bank of Bangladesh or any internationally recognized foreign bank (from any ADB member country) located outside the Purchaser's Country in the format included in section-9. If the issuing bank located outside the Purchaser's country, it shall have a correspondent bank located in the Purchaser's Country to make it enforceable with full risk and liability. The performance security must not be perforated, torn, sealed or signed by any party other than issuing bank.
GCC 18.4	Discharge of the Performance security shall take place in accordance with GCC Sub-Clause 18.4

GCC 23.2	Logo & Markings on 33 kv/11 kv ACR: A. A complete packing list indicating the content of each package shall be enclosed in a water proof envelope and shall be secured to the outside of the packing case. In addition, each package shall be marked with indelible ink/paint in bold letters. 33 kv/11 kv ACR Product Package shall be clearly and durably marked on its base with the following mandatory markings with the following information in English. - Contract Number - Name or trade mark of manufacturer - Name and address of Consignee - Country of origin - Gross weight - Net weight - Package number of total number of packages - Brief description of the content. BREB item number. Upright markings, where appropriate, shall be placed on all four vertical sides of the package. All materials used for packing shall be environmentally neutral. Additional marking and documentation within and outside the packages shall be: None. The packing, marking and documentation within and outside the packages shall be as specified in clause 6 and technical specification of respective item of section-6. and all packages or crates shall be marked as follows: Consignee of materials: Director, Clearing, Storage& Movement Bangladesh Rural Electrification Board Head Office (7th floor), Nikunja-2 Joarshahara, Khilkheta Dhaka-1229, Bangladesh
GCC 24.1	The insurance coverage shall be as specified in the Incoterms 2010. The responsibility of the supplier in an amount equal to 110% of the CIP value of the goods from warehouse to warehouse on an all Risks basis including War Risk and strikes. For goods supplied from within the Purchaser's country, the Supplier shall procure transit insurance on behalf of the Purchaser, naming the Purchaser as the sole beneficiary on the basis of all risks inclusive of warehouse to warehouse including War Risk and strikes in an amount of not less than 110% of the EXW value of the goods.
GCC 25.1	Obligations for transportation of the Goods shall be in accordance with Incoterms 2010.
GCC 26.2	Inspections and Testing of the materials to be supplied shall be carried out in accordance with Sub-clause 4.1 & 4.2 (Pre-Shipment/Pre-Delivery Inspection/post landing Inspection/Delivery Inspection) specified in Section 6

GCC 27.1	The applicable rate for liquidated damages for delay shall be: The amount of Liquidated Damages is 0.075 of ONE (1) percent of the contract value of the undelivered Goods or any part thereof delivered after expiry of the Delivery and Completion Schedule or extended Delivery and Completion Schedule, as applicable, per day of delay.
GCC 27.1	The maximum amount of liquidated damages shall be: 10% (ten) of contract price.
GCC 28.3	The period of validity of the Warranty shall be: The period of validity of the Warranty shall be 03(three) year from the date of acceptance of goods by the purchaser. For purposes of the Warranty, the place(s) of final destination(s) shall be BREB Central Warehouse are specified in the List of Goods and Delivery Schedule in Section- 6: Schedule of Requirements
GCC 28.5	The Supplier shall correct any defects covered by the Warranty within ninety (90) days of being notified by the Purchaser of the occurrence of such defects.
GCC 30.1 (b)	The amount of aggregate liability shall be: 100% of contract price.